

Form FDO5

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant/Petitioner

and

[name]

Respondent

Order for Paternity Testing

Before [the Honourable Justice/Court Officer name or blank] :

A motion was made on [date] , 20 , by [name of moving party] , for an order for a paternity test. [Describe the circumstances of motion and conciliation as applicable.]

[Name of possible father] has been identified as a possible father of the child, [name and birthdate] ;

On the motion of [name of moving party] , the following is ordered:

Testing

- 1 The mother, [name] , possible father, [name] , and the dependent child, [name and birthdate] , shall submit to one or more blood grouping tests or DNA profile comparison tests to be made by a duly-qualified medical practitioner or other qualified person, to determine whether or not the possible father can be excluded as being the father of the child.

Responsibility for arrangements and costs

- 2 The [*mother/possible father*] , [name] is responsible for all arrangements and all costs associated with the testing, including costs incurred by the other party and the dependent

child, [name and birthdate] .

[or]

- 2 The [applicant] , [name] is responsible for all arrangements and all costs associated with the testing, including costs incurred by the other party and the dependent child, [name and birthdate] are to be paid by the applicant in accordance with section 27(3) of the *Parenting and Support Act*.

[or]

- 2 The parties agree that they will be equally responsible for all arrangements and further agree that all costs associated with the testing, including costs incurred by the dependent child, [name and birthdate] will be paid by [describe how the costs are to be paid] .

Return to conciliation meeting

- 3 The parties shall return to the courthouse at , [Street/Avenue] , Nova Scotia to attend a conciliation meeting with a court officer [name] , at [a.m./p.m.] on [date] , 20 .

Issued [date] , 20 .

Court Officer

[Add the following when the order is made by a court officer.]

[Note that when an order is made by a court officer, the Civil Procedure Rules permit you to make a motion to the court officer to terminate or change the order, or appeal the order to a judge. The motion must be made or the appeal started, no more than ten days after a copy of the order is delivered to you.]